

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-21

PKDC, LLC

v.

CMA CGM S.A.

**RESPONDENT’S REPLY TO COMPLAINANT’S MOTION FOR FURTHER
EXTENSION OF SCHEDULING DEADLINES**

Respondent CMA CGM S.A. (“Respondent” or “CMA CGM”) hereby responds to the January 26, 2026, motion by Complainant PKDC, LLC (“Complainant” or “PKDC”) for further extension of scheduling deadlines (the “Motion”).

Respondent does not oppose the Motion. Respondent is agreeable to an extension of existing deadlines and to rescheduling of depositions. Respondent responds to make only a few brief points.

First, Respondent’s reluctance to reschedule the deposition tentatively scheduled for January 28 was not intended to be difficult and was based solely on the availability of the witness. The parties to this proceeding have generally been able to work through their differences and resolve them with little or no involvement by the Presiding Officer. Respondent believes the parties can continue to do so.

Second, the witness that had been tentatively scheduled to testify on January 28 is a senior executive with global responsibilities whose schedule has very little flexibility. Since the deposition will not take place on January 28, the next dates on which the witness will be available are in mid-March. Accordingly, if an extension of the scheduling deadlines is to be granted, we request that it take the witness’s availability into account.

Such an extension also would enable the parties to resolve outstanding objections with respect to the scope of the topics on which they wish to depose one another's corporate representatives, and to resolve other outstanding discovery matters in an orderly fashion.

Counsel for the parties conferred on January 27 and agreed that, subject to witness availability, three of the four depositions can likely be completed during the week of February 9. Counsel for Complainant indicated that they would not object to deposing Respondent's primary witness in March if that is the next date on which the witness is available.

Respectfully submitted,

COZEN O'CONNOR

/s/ Wayne R. Rohde

Wayne R. Rohde

Kathryn Sobotta

2001 M Street NW

Suite 500

Washington, DC 20036

Telephone: (202) 463-2507

Counsel for Respondent CMA CGM S.A.

Dated: January 28, 2026

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 28th day of January, 2026, the foregoing Reply to Complainant's Motion for Further Extension of Scheduling Deadlines was served via electronic mail on:

Jason Kenner, Esq. (jkenner@strtrade.com)

Luke Mathers, Esq. (lmathers@strtrade.com)

/s/ Wayne R. Rohde

Wayne R. Rohde